

## PRE-LOI DUE DILIGENCE

# Does the SPV Own the Shares?

A practical evidence checklist for deal teams reviewing the chain from investor capital to an SPV and the private-company shares it claims to hold.



Use this before signing an LOI or wiring funds. A single document is not enough; names, dates, share counts, rights, approvals, and money movement should agree across the full chain.

## 1. Ownership and transaction evidence

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|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------|
| <p>■ <b>Define the asset</b><br/>Record the company, security type, share class, share count, price, and any economic exposure being purchased.</p>                               | <p>Owner: _____<br/>Status: _____</p> |
| <p>■ <b>Verify the seller or transferor</b><br/>Identify who transferred the shares or rights to the SPV and whether that party had authority to do so.</p>                       | <p>Owner: _____<br/>Status: _____</p> |
| <p>■ <b>Match signed agreements</b><br/>Compare the subscription agreement, SPV operating agreement, purchase agreement, transfer documents, and side letters.</p>                | <p>Owner: _____<br/>Status: _____</p> |
| <p>■ <b>Confirm the ownership record</b><br/>Reconcile the transaction against the issuer cap table, transfer-agent record, administrator record, or another reliable source.</p> | <p>Owner: _____<br/>Status: _____</p> |
| <p>■ <b>Trace the money</b><br/>Match investor wires, SPV bank activity, purchase consideration, fees, and closing records.</p>                                                   | <p>Owner: _____<br/>Status: _____</p> |
| <p>■ <b>Identify restrictions</b><br/>Review ROFRs, transfer restrictions, consent requirements, lockups, liens, pledges, and encumbrances.</p>                                   | <p>Owner: _____<br/>Status: _____</p> |
| <p>■ <b>Reconcile economics</b><br/>Confirm that fees, markups, carried interest, allocations, and investor rights agree across disclosures and governing documents.</p>          | <p>Owner: _____<br/>Status: _____</p> |

## 2. Digital evidence and control checks

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|-------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------|
| <p>■ <b>Locate the system of record</b><br/>Identify where final ownership and transaction documents live and which copy is authoritative.</p>                    | <p>Owner: _____<br/>Status: _____</p> |
| <hr/>                                                                                                                                                             |                                       |
| <p>■ <b>Review access</b><br/>List who can view, upload, edit, approve, share, or delete the records.</p>                                                         | <p>Owner: _____<br/>Status: _____</p> |
| <hr/>                                                                                                                                                             |                                       |
| <p>■ <b>Require strong authentication</b><br/>Confirm MFA is enforced for administrators and everyone with access to sensitive deal records.</p>                  | <p>Owner: _____<br/>Status: _____</p> |
| <hr/>                                                                                                                                                             |                                       |
| <p>■ <b>Inspect change history</b><br/>Verify that material changes, versions, approvals, and downloads are logged and attributable.</p>                          | <p>Owner: _____<br/>Status: _____</p> |
| <hr/>                                                                                                                                                             |                                       |
| <p>■ <b>Check external sharing</b><br/>Review public links, guest access, forwarding rules, personal accounts, and off-platform copies.</p>                       | <p>Owner: _____<br/>Status: _____</p> |
| <hr/>                                                                                                                                                             |                                       |
| <p>■ <b>Test retention and recovery</b><br/>Confirm final documents are retained, backed up, and recoverable without relying on one person or device.</p>         | <p>Owner: _____<br/>Status: _____</p> |
| <hr/>                                                                                                                                                             |                                       |
| <p>■ <b>Validate approvals</b><br/>Match electronic approvals and signatures to named, authorized individuals and expected timestamps.</p>                        | <p>Owner: _____<br/>Status: _____</p> |
| <hr/>                                                                                                                                                             |                                       |
| <p>■ <b>Review vendor dependencies</b><br/>Identify the VDR, fund administrator, transfer agent, cap-table platform, custodian, and other critical providers.</p> | <p>Owner: _____<br/>Status: _____</p> |
| <hr/>                                                                                                                                                             |                                       |

### 3. Stop-and-escalate signals

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|--------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------|
| <p>■ <b>The records do not match</b><br/>Names, dates, share counts, prices, or rights conflict across documents.</p>                                              | <p>Owner: _____<br/>Status: _____</p> |
| <hr/>                                                                                                                                                              |                                       |
| <p>■ <b>The source cannot be independently confirmed</b><br/>The evidence comes only from a pitch deck, screenshot, email, or internally produced spreadsheet.</p> | <p>Owner: _____<br/>Status: _____</p> |
| <hr/>                                                                                                                                                              |                                       |
| <p>■ <b>The audit trail is missing</b><br/>Files were replaced, edited, or approved without a reliable history.</p>                                                | <p>Owner: _____<br/>Status: _____</p> |
| <hr/>                                                                                                                                                              |                                       |
| <p>■ <b>The asset may be restricted or pledged</b><br/>Consents, liens, transfer limits, or collateral arrangements remain unresolved.</p>                         | <p>Owner: _____<br/>Status: _____</p> |

### Questions for the diligence team

What exactly does the SPV own - shares, a contractual right, or economic exposure?

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Which independent record confirms that ownership?

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What evidence connects the investor's wire to the asset?

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Who can alter the underlying records, and would the change be visible?

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Which unresolved item could change valuation, timing, consent requirements, or closing risk?

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### What this checklist does - and does not do

This checklist helps a deal team organize and challenge the evidence. A cybersecurity review can assess whether digital records are controlled, traceable, and protected. It does not establish legal title or replace advice from legal counsel, fund administrators, transfer agents, accountants, or other qualified professionals.

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